

STATE OF NEW YORK

3999--B

2025-2026 Regular Sessions

IN ASSEMBLY

January 30, 2025

Introduced by M. of A. BRONSON -- read once and referred to the Committee on Corporations, Authorities and Commissions -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- reference changed to the Committee on Energy -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public authorities law, in relation to establishing the mechanical insulation energy savings program

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The public authorities law is amended by adding a new
2 section 1885 to read as follows:

3 § 1885. Mechanical insulation energy savings program. 1. Definitions.
4 For purposes of this section:

5 (a) "Applicant" shall mean any school district, public hospital,
6 public housing building, or political subdivision as defined in the
7 general municipal law, with a building or buildings that have a poten-
8 tial need for mechanical insulation upgrades. The minimum size for any
9 single building to be considered shall be twenty thousand square feet.

10 (b) "Mechanical insulation" shall mean insulation materials, facings
11 and accessory products used for thermal requirements for mechanical
12 piping and equipment, hot and cold applications, heating, ventilation,
13 and air-conditioning applications.

14 (c) "Qualified audit" shall mean a mechanical insulation audit of a
15 building by a qualified contractor, which identifies missing, damaged or
16 improperly installed mechanical insulation. Such audit shall include an
17 estimate of installation costs along with estimated energy and cost
18 savings. Such audit shall be provided by the qualified contractor at no
19 cost to the authority or applicant.

20 (d) "Qualified mechanical insulation expenditures" shall mean the
21 purchase of insulation materials, facings and accessory products used

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD06367-05-5

1 for thermal requirements for mechanical piping and equipment, hot and
2 cold applications, and heating, ventilation, and air-conditioning appli-
3 cations and all associated labor costs properly allocable to on-site
4 preparation, assembly and original installation, so long as performed by
5 a qualified contractor and in accordance with sections two hundred twen-
6 ty, two hundred twenty-b and two hundred twenty-i of the labor law.

7 (e) "Qualified contractor" shall mean an insulation contractor that is
8 party to an apprenticeship agreement, as defined in section eight
9 hundred sixteen of the labor law, which is in good standing, appropriate
10 for the type and scope of work to be performed, including the minimum
11 American Society of Heating, Refrigerating, and Air-Conditioning Engi-
12 neers Standard 90.1-2007, providing the energy standard for buildings
13 except low-rise residential buildings.

14 2. The authority is hereby authorized and directed to establish and
15 administer a mechanical insulation energy savings program to provide
16 applicants with qualified audits and grants to purchase mechanical insu-
17 lation. The authority shall establish an audit process whereby an
18 applicant may request a qualified audit. Such audit, if approved by the
19 authority, shall be provided to the applicant at no cost.

20 3. As part of this program, the authority shall issue grants for
21 applicants that have completed a qualified audit, which will cover one
22 hundred percent of the qualified mechanical insulation expenditures.

23 4. Within one year of the effective date of this section, the authori-
24 ty shall establish rules and regulations and identify eligible funding
25 to create the mechanical insulation energy savings program and create
26 guidelines for preferred applicants, buildings and energy savings.

27 § 2. This act shall take effect immediately.